



CHAPTER xii.

An Act to extend the periods prescribed by the scheme of arrangement relating to the Mortgage Insurance Corporation Limited for the liquidation of their affairs and for other purposes. [30th June 1905.] A.D. 1905.

WHEREAS the Mortgage Insurance Corporation Limited (hereinafter called "the Corporation") were on the fourth day of November one thousand eight hundred and eighty-six incorporated as a company limited by shares under the Companies Acts 1862 to 1883 for the purposes (amongst others) of insuring and guaranteeing the holders of charges upon property and of bonds and other securities and obligations from loss:

And whereas in carrying on its business the Corporation became largely involved in transactions in connection with the insurance and guaranteeing of charges upon property in Australia and obligations of Australian banks and companies and owing mainly to the financial depression in the Australian colonies and to the failure of many banks in the year one thousand eight hundred and ninety-three was compelled to seek relief under the Joint Stock Companies Arrangement Act 1870:

And whereas the business of the Corporation is now carried on under a scheme of arrangement relating to the affairs of the Corporation (a copy of which is set forth in the schedule to this Act) which was sanctioned by the High Court of Justice on the twenty-first day of February one thousand eight hundred and ninety-six and is hereinafter referred to as "the scheme":

And whereas under the scheme various periods are limited as therein stated within which various steps in connection with the ascertainment of claims against the Corporation and liquidation of

A.D. 1905. the affairs of the Corporation are to be taken with a view to the realisation and division of the assets of the Corporation by the thirty-first day of December one thousand nine hundred and five :

And whereas under the scheme the Corporation exists solely for the purpose of the judicious realisation of its assets and their distribution and the affairs of the Corporation are managed by a board of directors four of whom are appointed in the interests of the creditors of the Corporation and one by the shareholders :

And whereas prior to the adoption of the scheme the liabilities of the Corporation amounted to three million five hundred and ninety-four thousand one hundred and eighty-three pounds and such liabilities have under the scheme been reduced to an amount of one million and one thousand pounds of which ninety-three thousand eight hundred and two pounds represent admitted claims and the balance nine hundred and seven thousand one hundred and ninety-eight pounds represent unmatured liabilities under policies or contingent claims :

And whereas of the total amount of such unmatured liabilities or contingent claims the sum of seven hundred and forty-four thousand six hundred and nineteen pounds is represented by policies guaranteeing deposit receipts and debentures of reconstructed or liquidating banks and companies in Australia which owing to the depression which has prevailed in Australia of late years have been prevented from realising their assets to the extent contemplated and are carrying on business under schemes of arrangement in pursuance of which the dates for payment of their deposit receipts and debentures extend beyond the thirty-first day of December one thousand nine hundred and five when the Corporation's scheme comes to an end :

And whereas in view of the more prosperous conditions now prevailing throughout the Australian colonies it may reasonably be anticipated that the position of such banks and companies will be materially improved and the value of their deposit receipts and debentures will be materially increased prior to the year one thousand nine hundred and twelve and that consequently a corresponding reduction in the claims under policies issued as aforesaid by the Corporation will take place :

And whereas under the scheme the realised funds of the Corporation have been invested in high class securities specified in clause 22 of the scheme which have of late greatly depreciated

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and the realisation of which at the present time would involve serious loss : A.D. 1905.

And whereas it is anticipated that such of the assets belonging to the Corporation at the time of the adoption of the scheme as are still held by the Corporation could be sold to better advantage if further time were given for realisation :

And whereas the realisation and division of the assets of the Corporation within the period prescribed by the scheme would for the reasons aforesaid be detrimental to the interests of the creditors of the Corporation and it is expedient that the period so limited be extended :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

And whereas a circular explanatory of the alterations of the scheme embodied in and other provisions of the Bill for this Act was sent to all the creditors of the Corporation :

And whereas of the actual creditors of the Corporation on admitted claims persons representing seventy-six thousand one hundred and eighty-five pounds out of a total of ninety-three thousand eight hundred and two pounds of such claims have consented in writing to the Bill for this Act :

And whereas of the contingent creditors of the Corporation in respect of unmatured claims one thousand and nineteen persons representing estimated possible claims to the amount of two hundred and twenty-six thousand five hundred and fourteen pounds have consented in writing to the Bill for this Act and only fifteen persons representing estimated possible claims to the amount of six thousand three hundred and fourteen pounds have dissented from such provisions :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Mortgage Insurance Corporation Limited Act 1905. Short title.

2. In this Act the expression "the Corporation" means the Mortgage Insurance Corporation Limited the expression "the scheme" means the scheme of arrangement relating to the affairs Interpretation.

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A.D. 1905. of the Corporation sanctioned by the High Court of Justice on the twenty-first day of February one thousand eight hundred and ninety-six a copy of which scheme is scheduled to this Act the expression "the directors" means the directors appointed under the scheme and terms to which meanings are assigned by clause 30 of the scheme have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction.

Postpone-
ment.

3. The scheme and the articles of association of the Corporation respectively shall subject as hereinafter provided be read and have effect as if the year "one thousand nine hundred and twelve" had been mentioned in clauses 5 6 7 12 and 13 of the scheme and in article 133 of the said articles of association instead of the year "one thousand nine hundred and five" wherever such last-mentioned year is referred to in those clauses Provided that it shall be lawful for the directors in their discretion to fix such earlier year for the realisation and division of the assets of the Corporation as they think expedient and notice of such determination shall be advertised once in each of three successive weeks in the London Edinburgh and Dublin Gazettes not more than nine or less than six months prior to the thirtieth day of June in the year so fixed and on and as from the publication of the last of the said advertisements the scheme and the said articles of association as amended as aforesaid shall respectively be deemed to be further modified by the substitution in the aforesaid clauses and article of the year so fixed in lieu of the year one thousand nine hundred and twelve.

As to credi-
tors whose
claims ma-
tured.

4. All creditors whose claims for principal moneys against the Corporation have matured and been admitted by the thirty-first day of December one thousand nine hundred and five and all other creditors whose claims shall mature and be admitted subsequently to that date and prior to the thirty-first day of December one thousand nine hundred and twelve or the thirty-first day of December in such earlier year as may be fixed as aforesaid for the realisation and division of the assets of the Corporation shall be entitled to receive from the Corporation on the thirty-first day of December one thousand nine hundred and five or on the thirty-first day of December next following the subsequent admission of the claim as the case may be a cash payment on account of their admitted claim equal to five shillings in the pound on the amount of such claim with a right to

interest on the balance of such claim at two per centum per annum as from the said thirty-first day of December one thousand nine hundred and five or the thirty-first day of December next following the admission of the claim as the case may be until the thirty-first day of December in the year one thousand nine hundred and twelve or such earlier year as may be fixed as aforesaid for the realisation and division of the assets of the Corporation : A.D. 1905.

Provided that any creditor availing himself of the provisions of the section of this Act of which the marginal note is "As to compromises with creditors" shall not afterwards be entitled to the benefit of this section.

5.—(1) All creditors whose claims for principal moneys against the Corporation have not matured by the thirty-first day of December one thousand nine hundred and five shall be entitled to receive on the said thirty-first day of December a cash payment on account of such principal moneys of five shillings in the pound on the amount of the principal moneys proved for and admitted as hereinafter provided. As to creditors whose claims are not matured.

(2) In order to enable the amount of the principal moneys upon which such cash payment is to be based to be ascertained the claim in respect of such moneys shall be provisionally admitted for that purpose only upon proofs to be lodged and dealt with as provided by clause 8 of the scheme and that clause shall apply accordingly :

Provided that nothing in this Act or any admission of such claim shall prejudice or affect the rights of the Corporation in relation to such claim otherwise than in regard to the fixing of the amount thereof for the purpose of ascertaining the amount of the cash payment due to the creditor under this section.

(3) The cash payments made to creditors under this section on account of unmatured claims for principal shall be the absolute property of the creditor who shall be entitled to retain the same notwithstanding that upon the claim having been finally admitted it may be found to be in excess of the amount to which he would have been entitled if this section had not been enacted but all creditors becoming entitled upon the maturing of their claim to the benefits mentioned in the section of this Act of which the marginal note is "As to creditors whose claims matured" shall give credit against any cash payments they may

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A.D. 1905. — be entitled to under that section for any cash payment received under this section.

As to com-
promises
with credi-
tors.

6. After the thirty-first day of December one thousand nine hundred and five all creditors whose claims for principal moneys against the Corporation have at that date matured and been admitted or shall subsequently to that date and prior to the thirty-first day of December one thousand nine hundred and twelve or the thirty-first day of December in such earlier year as may be fixed as aforesaid for the realisation and division of the assets of the Corporation mature and be admitted shall be entitled on their reducing their admitted claim by twenty-five per centum to receive a cash payment on account of such claim of ten shillings in the pound on the amount of such claim so reduced together with a certificate entitling them to rank for the remaining ten shillings in the pound of the admitted claim as so reduced in the final distribution of assets of the Corporation and the liability of the Corporation in respect of the principal moneys payable under such claim shall be limited after the said cash payment to the amount mentioned in such certificate and the creditor shall be entitled to interest at two per centum per annum on the amount mentioned in such certificate as from the date of the said certificate until the thirty-first day of December in the year one thousand nine hundred and twelve or such earlier year as may be fixed as aforesaid for the realisation and division of the assets of the Corporation but shall have no further or other right to interest in respect of his claim and it shall be lawful for the directors of the Corporation to issue such certificates accordingly Any creditor taking advantage of the provisions of this section shall bring into account any cash payment which he may have received on account of his claim under the sections of this Act of which the marginal notes are respectively "As to creditors whose claims matured" and "As to creditors whose claims are not matured."

Cancellation
of clause 17
of scheme.

7. Clause 17 of the scheme shall be and is hereby cancelled and repealed as from the thirty-first day of December one thousand nine hundred and five.

As to modi-
fication of
clause 13 of
scheme.

8. Any liability of the Corporation to guarantee interest on the claim of any creditor under clause 13 of the scheme shall cease so soon as such creditor may become entitled to interest under any of the sections of this Act of which the marginal notes are respectively "As to creditors whose claims matured" "As to

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creditors whose claims are not matured ” and “ As to compromises with creditors.” A.D. 1905.

9. The directors may without any further or other authority realise the assets of the Corporation for the purpose of and applying them in carrying into effect the provisions of this Act and paying the costs charges and expenses preliminary to and of and incidental to the procuring obtaining and passing of this Act as if such provisions were part of the scheme and such costs charges and expenses were part of the costs and expenses of carrying into effect the scheme and may exercise all such other rights powers and privileges as may be necessary or convenient for giving full effect to the provisions of this Act.

Powers of directors.

10. The scheme and the articles of association shall be and are hereby amended and shall be read and construed so as to conform with the provisions of this Act.

Scheme and articles to conform with Act.

11. The Corporation shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not delivered within three months from the passing of this Act the Corporation shall incur a penalty not exceeding two pounds for every day after the expiration of the said three months during which the default continues and any director or manager of the Corporation who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily There shall be paid to the said registrar by the Corporation on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Act to be registered.

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The SCHEDULE referred to in the foregoing Act.]

SCHEME OF ARRANGEMENT.

1. The present uncalled capital of the Corporation amounting to 4*l.* per share shall be immediately called up and be payable—

As to 1*l.* per share on the 1st January 1896 or within one month of the sanctioning of the scheme and the balance by instalments;

- „ 10*s.* per share on 1st July 1896;
- „ 10*s.* per share on 1st January 1897;
- „ 10*s.* per share on 1st July 1897;
- „ 10*s.* per share on 1st January 1898;
- „ 10*s.* per share on 1st July 1898; and
- „ the balance of 10*s.* per share on 1st January 1899.

Instalments of calls may be paid in advance subject to discount at the rate of 5 per cent. per annum.

2. No transfers of shares not fully paid up to be registered by the directors.

3. The assets of the Corporation to be judiciously realised and the proceeds of such realisation together with the calls to be received under clause 1 hereof and any other moneys to be received by the Corporation subject to the next succeeding clause hereof to be invested in or upon any of the investments mentioned in clause 22 hereof.

4. The assets of the Corporation to be applied from time to time in payment of—

- (A) The salaries and wages of the officers and servants of the Corporation and office rent and expenses now due including all payments for salary that may be due to local secretaries or agents:
- (B) All costs and expenses of the Corporation of and incidental to (1) the negotiations for and preparation of this scheme and the making the same binding on all necessary parties including the costs of all meetings of creditors and contributories and obtaining the sanction of the court hereto and (2) the winding-up proceedings all such costs and expenses to be taxed:
- (C) The costs and expenses of managing the Corporation's business and carrying into effect this scheme including the managing director's salary such salary not to exceed 1,000*l.* for the first year (on condition that the whole of such director's time is occupied in such management) not to exceed 750*l.* per annum for the next two years and not to exceed 500*l.* per annum for

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subsequent years but the board of directors are to be at liberty to grant such additional sum not exceeding 500*l.* for the last year as they may think fit:

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(D) A sum not exceeding 600*l.* per annum for directors' fees such sum to be divided amongst the directors other than the managing director in such a manner as they shall from time to time determine with liberty to the board of directors to allot an additional sum not exceeding 50*l.* in any one year for their out-of-pocket expenses to be allotted in such way as the board may from time to time think fit but this is to confer no right on the directors or any of them to receive any part of any such sum unless so allotted as aforesaid:

(E) Claims of holders of capital redemption fund policies:

(F) Creditors secured by mortgages or other charges granted to them by the Corporation which the Corporation may at any time wish to redeem:

(G) The interest payable under clause 13 hereof.

5. The time for payment of the claims of creditors (other than those mentioned in clause 4 hereof) in respect of principal moneys to be postponed until the 31st December 1905.

6. All creditors whose claims in respect of principal moneys may not have matured on the 30th June 1905 to be entitled to prove in respect of the contingent liability of the Corporation to such creditors.

7. The Corporation on or before the 31st March 1905 to send out forms of proof of claims to all creditors who may not prior to that date have lodged proofs and any creditor whose proof shall not have been lodged with the Corporation prior to the 30th June 1905 not to be entitled to participate in the division of assets to be made on the 31st December 1905.

8. All proofs by secured creditors to be subject to the following rules:—

(A) If a secured creditor after complying with the terms and conditions of the Corporation's policy realises his security he may prove for the balance due to him after deducting the net amount realised or if he surrenders his security to the Corporation he may prove for the full amount of his claim:

(B) If a secured creditor does not either realise or surrender his security he shall before ranking for dividend state in his proof the particulars of his security the date when it was given and the value at which he assesses it and shall be entitled to receive a dividend only in respect of the balance of his claim after deducting the value so assessed:

(C) Where a security is so valued the Corporation may at any time within six months of the date of admission of a claim take it

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over on payment to the creditor of the assessed value or may require that the security so valued be offered for sale at such time and on such terms and conditions as may be agreed upon between the creditor and the Corporation or in default of such agreement as the arbitrator hereinafter mentioned may direct. If the sale be by public auction the creditor or the Corporation may bid for or purchase such security. The net amount realised shall be substituted for the amount of the valuation previously made by the creditor:

- (D) Where a security has been or shall be realised in whole or in part whether by the creditor or his trustees or trustee and the proceeds of such realisation have been or shall be applied in payment of interest upon the principal moneys secured at a rate exceeding 2 per cent. per annum the amount of such excess shall be deducted from his claim.

9. The Corporation to have power from time to time to request any secured creditor for the time being entitled to sell the property subject to his security to offer the same for sale by auction or in the market as the case may be at a price sufficient to cover the amount owing to such creditor upon his security on the Corporation indemnifying him against the costs and expenses of such sale.

10. Any secured creditor not complying with the terms of clause 8 hereof or failing to comply with the request mentioned in clause 9 hereof to forfeit all claims against the Corporation.

11. In case any difference shall arise between any creditor and the Corporation as to the admission of a proof in whole or in part the same shall be referred to the arbitrator who shall have power to admit expunge or reduce the proof.

12. The Corporation prior to the 31st December 1905 to realise all assets belonging to the Corporation and on the 31st December 1905 to apply the proceeds of such realisation in the manner and the order of priority following:—

- (A) In payment of all sums then remaining payable under clause 4 hereof:
(B) In payment *pari passu* of all arrears of interest payable under clause 13 hereof up to the 31st December 1905:
(C) In payment *pari passu* of the claims proved hereunder and admitted by the Corporation or by the arbitrator as the case may be.

The surplus if any remaining after the above-mentioned payments have been made to be divided among the shareholders of the Company in accordance with their respective rights and interests therein.

13. The Corporation to be released from all liability to pay interest now due or hereafter to become due to its creditors and in lieu thereof to

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guarantee during each year of the period commencing the 1st day of January 1896 and ending the 31st day of December 1905 interest at the rate of 2 per cent. per annum to such of the creditors as may have received for such year less than 2 per cent. as and for interest or other income on their principal moneys provided always that such interest shall only be payable for the purpose of equalising the said interest or income received by the creditors during such period and not as being supplementary thereto any sums becoming payable under this clause to become due on the 31st day of December in each year and to be payable within three calendar months thereafter. A.D. 1905.

14. Any creditor shall be entitled to realise his security without the consent of the Corporation and apply the proceeds according to his rights at present existing under the instrument creating the security provided he makes no claim against the Corporation.

15. Any person who shall receive any payment under clause 13 hereof to transfer to the Corporation all certificates coupons and other instruments funding interest in arrear for the period in respect whereof such payment has been made The Corporation after obtaining payment of the said instruments to return to such person any surplus remaining after payment in full to the Corporation of the sums paid by it to him for the period aforesaid.

16. Creditors whose securities have not been realised or whose claims have not been compromised under clauses 17 or 18 hereof shall not be required to lodge proof of debt as a condition precedent to receiving interest payable under clause 13 hereof but shall at the request of the Corporation substantiate such claim by furnishing such particulars as the Corporation may reasonably require.

17. All creditors who have realised the securities held by them and all creditors whose claims have been compromised by the Corporation under the provisions of this and the next succeeding clause hereof to lodge with the Corporation formal proof of claim and to have the same admitted by either the Corporation or the arbitrator and on such proof being admitted the creditor on agreeing to reduce his claim to one half the amount admitted shall be entitled to receive in cash 8s. in the pound on the amount of his claim so reduced and a certificate admitting his claim for the balance of 12s. in the pound entitling the holder thereof to participate in the division of assets to be made on the 31st December 1905 and to interest on the amount of such certificate in terms of clause 13.

18. The Corporation to have power to enter into and carry into effect any compromise with any of its creditors upon such terms and subject to such conditions as the Corporation may think fit provided that such compromise shall not be binding upon the Corporation unless approved in writing by both the directors for the time being representing the creditors.

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19. Each policy holder to pay until his claim shall mature the premium for the period only for which he is liable under this policy and the same to be payable to the Corporation as follows :—

- (A) Premiums which according to the terms of the policy have or but for the winding-up of the Corporation would have become payable prior to the time when this scheme is sanctioned to be paid within one calendar month after this scheme is sanctioned :
- (B) Premiums which according to the terms of the policy shall become payable after this scheme is sanctioned to be paid within twenty-one days after they become payable :
- (C) In case default is made in any such payment the policy to become void but with power to the Corporation to revive same on such terms as it may think fit.

20. The holders of existing policies to retain their rights under such policies except so far as the same are varied by this scheme but it is expressly agreed that where the Corporation's policy guarantees the securities of banks and companies which have been or shall be reconstructed under schemes of arrangement the said policies shall be held to include the guarantee of any new securities which have been or shall hereafter be allotted to the Corporation's creditors under the reconstruction schemes of the said banks or companies.

21. The Corporation not to issue any further policies except in substitution for existing policies nor to undertake any new business but the Corporation to have power to sanction any of its policy holders giving time to the company or person whose obligation is insured for the performance of such obligation or accepting a new security in place of the existing security and for that purpose the Corporation to have power to vary the terms of such policies and to issue new policies insuring the substituted securities.

22. All moneys which ought to be invested under this scheme may be invested in or upon any of the parliamentary stocks or public funds of Great Britain or at interest upon Government or real or leasehold securities in England or Wales and in the case of leasehold securities without being bound to make any investigation of the lessor's title or being subject to any liability for omitting so to do or on the security of any life interest in any real or personal property together with an insurance on the life and so that any security taken under these presents may be either subject or not to any prior incumbrances or in the stock of the Bank of England Metropolitan Board of Works or London County Council or in the stock or securities of the Government of India for the time being or the stock or securities of the government of any British colony or dependency or of any foreign government state or municipality or in the purchase of the stock or shares ordinary or otherwise or on the security of the bonds mortgages or debentures or in the purchase of the debenture stock of any railway canal dock harbour

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gas or water company or other public company carrying on business in Great Britain or India or any British colony or dependency or in the bonds stock or other securities of any municipal corporation or local or harbour authority or other public body in Great Britain or in any British colony or dependency or of any incorporated company in Great Britain established for the purpose of investing money in the purchase or on mortgage or sub-mortgage of land or other real or leasehold property in Great Britain or in any British colony or dependency with power from time to time to change such investments for others of a like nature The Corporation may instead of investing any of the said moneys apply the same in the purchase or redemption of any security guaranteed or insured by the Corporation or in developing dealing with and turning to the best account any property for the time being belonging to the Corporation.

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23. The first directors under this scheme shall be the two liquidators one director to be appointed by the shareholders or by the court and two directors to be appointed by a majority of the creditors represented personally or by proxy at the meetings held to consider this scheme or in default of such appointment at a meeting of the creditors to be called for the purpose or to be appointed by the court The board may for the more convenient conduct of its operations appoint one of their number as managing director for either a fixed term or without limitation as to the period for which he is to hold such office and at such remuneration subject to clause 4 (c) hereof as they see fit and may from time to time remove him from such office and appoint another in his place In the event of the death bankruptcy insanity or resignation of the director appointed on behalf of the shareholders the vacancy to be filled up at the next annual general meeting of the company and in the event of a similar contingency in the case of any of the other directors the vacancy to be filled up by a director to be elected by a majority of the creditors represented either personally or by proxy at a meeting to be called for the purpose Three directors to be a quorum No share qualification to be necessary for the directors under this clause.

24. Any difference arising between the Corporation and any of its creditors or shareholders with reference to the construction of this scheme or the carrying out of the same or to the powers rights duties or obligations hereunder of the Corporation or of any such creditor or shareholder to be referred to arbitration.

25. The securities and cash assigned to the trustees under clause 6 of the 1894 scheme or the investments now representing the same to be assigned transferred or otherwise vested in the Corporation and the trustees thereupon to be released from all liability in respect thereof.

26. The pending liquidation to be stayed and the liquidators to be discharged and to hand over the assets to the Corporation.

27. The articles of association of the Corporation to be altered to bring them into conformity with this scheme.

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28. Such alterations to be made in this scheme as the court may approve or impose.

29. This scheme to be in substitution for the 1894 scheme and upon this scheme being sanctioned by the court the 1894 scheme to become null and void.

30. For the purposes of this scheme "creditor" shall include policy holder "Secured creditor" shall mean any creditor who holds any security or securities for or relating to his claim enforceable against any company other than the Corporation or any persons or person or against its their or his property "Security" or "securities" shall include any mortgage debenture debenture stock incumbrance or other charge deposit receipt share or stock in any company script or other certificate negotiable instrument guarantee or policy of assurance The "1894 Scheme" shall mean the scheme of arrangement sanctioned by the court on the 31st day of January 1894 "Arbitrator" shall mean any arbitrator appointed hereunder "Principal moneys" shall include any principal sums the payment whereof has been guaranteed by the Corporation "Interest" shall include any interest so guaranteed.

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